

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Leanne Fornelli	Team: Squad #08	CCRB Case #: 201502878	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/14/2015 9:31 PM	Location of Incident: Mosholu Avenue and Broadway; § 87(2)(b)	18 Mo. SOL 10/14/2016	Precinct: 50		
Date/Time CV Reported Thu, 04/16/2015 1:29 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 04/16/2015 1:29 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM John Galbo	04486	951751	050 PCT
2. LT Paul McMahon	00000	899574	050 PCT
3. POM Viet Dang	19610	951653	050 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Meribeth Alix	20994	951491	050 PCT
2. SGT Mathew Byrnes	02238	945539	050 PCT
3. POM Michael Best	11744	948666	050 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM John Galbo	Abuse: At Mosholu Avenue and Broadway, PO John Galbo frisked § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . POM John Galbo	Abuse: At Mosholu Avenue and Broadway, PO John Galbo searched § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . POM John Galbo	Abuse: At Mosholu Avenue and Broadway, PO John Galbo searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Exonerated
D . POM Viet Dang	Abuse: At Mosholu Avenue and Broadway, PO Viet Dang searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	D . Exonerated
E . POM John Galbo	Abuse: PO John Galbo arrested § 87(2)(b) and § 87(2)(b)	E . Substantiated
F . LT Paul McMahon	Abuse: Lt. Paul McMahon arrested § 87(2)(b) and § 87(2)(b)	F . Substantiated
G . LT Paul McMahon	Abuse: Lt. Paul McMahon entered and searched § 87(2)(b), in the Bronx.	G . Substantiated
H . LT Paul McMahon	Abuse: At § 87(2)(b), Lt. Paul McMahon threatened to arrest § 87(2)(b) and § 87(2)(b)	H . Substantiated

Case Summary

On April 16, 2015, § 87(2)(b) filed this complaint with the CCRB via telephone on behalf of her family members and did not witness any part of the incident. On April 14, 2015, at 9:31 p.m. (§ 87(2)(b)); Board Review (BR) 1), at Mosholu Avenue and Broadway in the Bronx, § 87(2)(b) was arrested by officers of the 50th Precinct with a top charge of criminal possession of marihuana. The following was alleged: At Mosholu Avenue and Broadway, PO John Galbo frisked and searched § 87(2)(b) and his sister § 87(2)(b) (**Allegations A and B**), and PO Galbo and PO Viet Dang searched the car occupied by them and their friend § 87(2)(b) (**Allegations C and D**). PO Galbo and Lt. Paul McMahon improperly arrested § 87(2)(b) and § 87(2)(b) (**Allegations E and F**). On the same day at approximately 10:00 p.m. (time established from the criminal court complaint for the arrest; BR 2) at § 87(2)(b) Lt. McMahon entered and searched the residence (**Allegation G**), and threatened to arrest § 87(2)(b)'s grandmother, § 87(2)(b) and his other sister, § 87(2)(b) (**Allegation H**).

Mediation, Civil and Criminal Histories

- § 87(2)(b)'s arrest (BR 1) rendered this case ineligible for mediation.
- No one involved in this incident had filed a notice of claim in regard as of August 17, 2015, three days past the 90-day filing deadline (BR 3).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[redacted]
[redacted]
 - [redacted]
[redacted]
 - [redacted]
[redacted]
 - [redacted]
[redacted]
- [redacted]
[redacted]

Civilian and Officer CCRB Histories

- § 87(2)(b) filed one other complaint, § 87(2)(b)
[redacted]
[redacted]
[redacted]
- This is the first CCRB complaint involving § 87(2)(b) (BR 8), § 87(2)(b) (BR 9) and § 87(2)(b) (BR 10).
- PO Galbo has been a member of service (MOS) for three years and this is his first CCRB complaint (BR 11).
- PO Dang has been an MOS for three years and has four CCRB allegations pled against him in three other cases (BR 12). None of these allegations were substantiated. § 87(2)(b)
[redacted]
- Lt. McMahon has been an MOS for 24 years and has 75 CCRB allegations pled against him

in 26 other cases, which include the following (BR 13):

- In CCRB 9803717, the Board substantiated and recommended charges for an allegation of physical force for which the NYPD disposition and penalty are pending as of this writing. In CCRB 200003842, the Board substantiated and recommended charges for an allegation of a strip-search for which the NYPD disposition and penalty are pending as of this writing. In CCRB 200205489, the Board substantiated and recommended charges for two allegations of a frisk and/or search, an allegation of a vehicle search, § 87(4-b) § 87(2)(g) for which the NYPD disposition was no disciplinary action due to the statute of limitations and for which no penalty was imposed. In CCRB 200501381, the Board substantiated and recommended charges for a vehicle search, and the NYPD disposition and penalty were instructions.
- § 87(2)(b)
- CCRB 9903506, CCRB 200404725, CCRB 200507922, CCRB 200915616 and CCRB 201003590 collectively contain five allegations of a threat of arrest, one of which was closed as unfounded, two of which were unsubstantiated, one of which was exonerated and one of which was mediated.
- CCRB 200404725, CCRB 200501381, CCRB 200507885, CCRB 200915479 collectively contain four allegations of a premises entered and/or searched and all were closed as exonerated.

Potential Issues

- § 87(2)(b) is a victim in this case. § 87(2)(b) scheduled a CCRB interview on § 87(2)(b)'s behalf for April 27, 2015. § 87(2)(b) did not appear for this appointment and did not call ahead of time to cancel or reschedule. On April 27, 2015, a LexisNexis search for § 87(2)(b) yielded a telephone number that was no longer valid. Between May 6, 2015, and June 4, 2015, eight calls were made to either § 87(2)(b) or § 87(2)(b) to reach § 87(2)(b). Each time, a voicemail was left, a message was left with § 87(2)(b) or § 87(2)(b) or a busy signal was received. On April 20, 2015, May 6, 2015, and May 20, 2015, please call letters were sent to § 87(2)(b) and they were not returned by the United States Postal Service. On May 28, 2015, § 87(2)(b) provided a phone statement (BR 14) and rescheduled his CCRB appointment for June 4, 2015. He did not appear for his appointment and did not call ahead of time to cancel or reschedule. On September 28, 2015, an online search of the New York City Department of Corrections Inmate Lookup Service revealed that he was not incarcerated. To date, he has not contacted the undersigned investigator.
- § 87(2)(b) is a victim in this case. On May 6, 2015, § 87(2)(b) spoke to the undersigned investigator and stated that he did not wish to participate in the investigation (BR 15).

Findings and Recommendations

Explanation of Subject Officer Identification

- PO Galbo (BR 16) stated that it was his decision to arrest § 87(2)(b) and § 87(2)(b) and that Lt. McMahon gave no instruction regarding this. Lt. McMahon corroborated

this insomuch as he stated that he verified the arrests of everyone at the initial scene of the incident, as he thought that the marihuana was found in the car and not on any one person. Lt. McMahon (BR 17) said it was his decision as to when § 87(2)(b) and § 87(2)(b) would be released and while he could not recall when he did this, it would have been after § 87(2)(b) signed the mirandized statement taking responsibility for the marihuana in the vehicle. § 87(2)(g)

- As Lt. McMahon (BR 17) was the supervisor to instruct that officers go to § 87(2)(b) § 87(2)(b)'s residence, which he acknowledged, § 87(2)(g).

Allegations not pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

Allegation A – Abuse of Authority: At Mosholu Avenue and Broadway, PO John Galbo frisked § 87(2)(b) and § 87(2)(b)

Allegation B – Abuse of Authority: At Mosholu Avenue and Broadway, PO John Galbo searched § 87(2)(b) and § 87(2)(b)

Allegation C – Abuse of Authority: At Mosholu Avenue and Broadway, PO John Galbo searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation D – Abuse of Authority: At Mosholu Avenue and Broadway, PO Viet Dang searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) (BR 18) said that before § 87(2)(b) picked her and § 87(2)(b) up in his car, she and § 87(2)(b) smoked marihuana. After the officers, identified as PO Galbo and PO Dang stopped the car, PO Dang asked § 87(2)(b) the driver, to step out of the car. A minute later, PO Galbo approached the front passenger's side where § 87(2)(b) sat. PO Galbo asked § 87(2)(b) if he had smoked earlier and § 87(2)(b) answered affirmatively. § 87(2)(b) thought that PO Galbo could probably smell the marihuana on § 87(2)(b). PO Galbo asked § 87(2)(b) to step out of the car. § 87(2)(b) saw, but did not hear, § 87(2)(b) say something to PO Galbo after he stepped out of the car. PO Galbo patted § 87(2)(b) down on his arms, chest, belly, legs and back, and reached into all of his pockets. § 87(2)(b) said that she did not know if § 87(2)(b) had marihuana on his person, but later at the stationhouse, she saw officers who were with § 87(2)(b) put marihuana on the front desk and she thought this probably belonged to § 87(2)(b). PO Galbo quickly took something from § 87(2)(b)'s pocket that § 87(2)(b) could not see, and then handcuffed him. Lt. McMahon, whose name § 87(2)(b) observed on his badge, then arrived to the scene. PO Galbo approached § 87(2)(b) who sat in the backseat, and asked her to step out of

the car, which she did. PO Galbo did not seem to want to pat § 87(2)(b) down, as she is a female, but did so briefly. PO Galbo asked her if she had anything illegal on her, and she answered that she did not. PO Galbo searched her and handcuffed her. She, § 87(2)(b) and § 87(2)(b) were brought to the rear of the car, and they all sat on the bumper in a line. At this time, all four doors of the car were open and PO Galbo and PO Dang leaned the top half of their bodies inside the car. Lt. McMahon approached the car for a minute, and then walked away from it and § 87(2)(b) did not know if he searched the car.

In § 87(2)(b)'s phone statement (BR 14), he said that PO Galbo asked him if he smoked and § 87(2)(b) said that he did. As § 87(2)(b) was stepping out of the car, he told PO Galbo that he had two ounces of marihuana in his shirt because he did not want any problems with the officers and PO Galbo retrieved it. He did not allege that he was frisked, that § 87(2)(b) was frisked and searched, or that the car was searched. § 87(2)(b) (BR 15) did not participate with the investigation.

PO Galbo (BR 16) said that after the car was stopped, PO Dang approached the driver's side and he approached the passenger's side. As PO Galbo approached, he saw § 87(2)(b) stuff something underneath his hoodie. He saw no one else in the car make any other movement. When PO Galbo reached the front passenger's window, which was rolled down, he immediately smelled a strong odor of vegetative marihuana. PO Galbo asked § 87(2)(b) "Do you have any marihuana on you?" § 87(2)(b) without hesitation, said, "I have two bags of marihuana inside my hoodie." PO Galbo asked § 87(2)(b) to step out of the vehicle and recovered two large bags with two ounces of marihuana in each from underneath § 87(2)(b)'s hoodie. He did not mention patting down § 87(2)(b). This quantity was more than for personal use, and is typically used for sale. § 87(2)(b) was searched at the scene and PO Galbo could not recall by whom. No contraband was found on him. § 87(2)(b) was searched later at the stationhouse by a female officer. PO Galbo quickly searched the vehicle to ensure there was no additional contraband inside, given that marihuana was found on § 87(2)(b). He looked on the floor and underneath the seats and he could not recall how long this took. He could not recall if any officer helped him with this or if this was done before or after the arrival of Lt. McMahon, who he called to the scene to verify the arrests.

Lt. McMahon (BR 17) said that when he arrived to the scene of the car stop, the three occupants were at the rear of the car and he could not recall if they were handcuffed. He could not recall if any of the occupants were patted down and searched. The car was searched at the scene and he thought it was because marihuana may have had been seen inside, so the officers were checking for more contraband. Lt. McMahon could smell marihuana coming from the car.

The smell of marihuana alone sufficiently provides officers with probable cause to search a vehicle and its occupants, People v. Johnson, 901 N.Y.S.2d 909 (2009) (BR 19).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A through D** be closed as **Exonerated**.

Allegation E – Abuse of Authority: PO John Galbo arrested § 87(2)(b) and § 87(2)(b)

Allegation F – Abuse of Authority: Lt. Paul McMahon arrested § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) (BR 18) said that after PO Galbo patted her down, he asked if there was anything illegal on her or in the car, and she answered that there was not. Two officers, § 87(2)(b) could not recall who, said that she, § 87(2)(b) and § 87(2)(b) were not under arrest, but were being detained because the car was under investigation. § 87(2)(b) and § 87(2)(b) were transported to the 50th Precinct stationhouse in a patrol car driven by an officer identified via investigation as PO Michael Best of the 50th Precinct, who was alone. § 87(2)(b) and § 87(2)(b) arrived to the stationhouse at 9:45 p.m. She was placed in a cell and as the time passed, an officer told her to be patient, as the car was still under investigation. Within an hour, PO Galbo came and spoke to her. He told her that officers had gone to the house of her grandmother § 87(2)(b) and spoke to § 87(2)(b) and looked around. He said that § 87(2)(b) would speak to his boss and that § 87(2)(b) had to sign a form before she and § 87(2)(b) could be released. He said that upon § 87(2)(b) signing the form, she and § 87(2)(b) would not be charged with anything. At 1:30 a.m., § 87(2)(b) and § 87(2)(b) were released without any summons.

In § 87(2)(b)'s phone statement (BR 14), he said that he told the officers who included PO Galbo and Lt. McMahon that the marihuana on his person was his, but they still detained § 87(2)(b) and § 87(2)(b). There was no marihuana inside the car and there was only marihuana on his person. § 87(2)(b) said, "That weed is mine, so don't you think you should let them go?" Lt. McMahon said, "No, the car is under investigation." § 87(2)(b) (BR 15) did not participate in the investigation.

PO Galbo (BR 16) said that as he approached the car during the car stop, § 87(2)(b) stuffed something under his hoodie. Neither § 87(2)(b) nor § 87(2)(b) made any movements that he saw. He at no time saw anyone in the car make a movement as if to hide anything in the car. Nothing about § 87(2)(b) or § 87(2)(b) made him feel wary. After he smelled marihuana in the car, he asked § 87(2)(b) if he had any on him, and § 87(2)(b) readily answered that he had two bags inside his hoodie. After § 87(2)(b) stepped out of the car, he recovered the marihuana from underneath § 87(2)(b)'s hoodie. Upon finding the marihuana, § 87(2)(b) and § 87(2)(b) were considered under arrest, which was PO Galbo's decision. The officers did not know to whom the marihuana belonged because PO Galbo saw § 87(2)(b) stuff what he assumed to be the marihuana under his hoodie. Although § 87(2)(b)

would later take ownership of the marihuana, this could not be established at the scene because a written statement was needed from him, at which time the arrests of § 87(2)(b) and § 87(2)(b) could be voided. A written statement could not be completed at the scene because it needed to be generated on a Miranda form, which the officers do not carry with them. § 87(2)(b) was searched at the scene and no marihuana was found on him. § 87(2)(b) was searched later at the stationhouse by a female officer. The search of the vehicle yielded no further contraband. At the stationhouse, Lt. McMahon decided that officers would go to § 87(2)(b) where § 87(2)(b) resided with his grandmother § 87(2)(b) to determine if there was any more marihuana there. After the officers returned to the stationhouse, PO Galbo took a mirandized statement from § 87(2)(b) in which he took responsibility for the marihuana in the car and the apartment. § 87(2)(f), § 87(2)(e)

PO Galbo then voided § 87(2)(b)'s and § 87(2)(b)'s arrests after they had been at the stationhouse for three hours. § 87(2)(b) and § 87(2)(b) were not released before the officers went to § 87(2)(b)'s residence because they did not want them to make any phone calls or rid the apartment of any marihuana before the officers could get there. There was no other reason for detaining § 87(2)(b) and § 87(2)(b).

PO Galbo provided the following testimony in the criminal court complaint for Arrest § 87(2)(a) 160.50 of § 87(2)(b) (BR 2): § 87(2)(a) 160.50

§ 87(2)(b) The report makes no mention of PO Galbo observing § 87(2)(b) place anything underneath his shirt upon approach of the vehicle.

Lt. McMahon (BR 17) said that when he responded to the scene, the occupants were lined up at the rear of the vehicle with their backs up against it. He could not recall if the occupants were handcuffed. He spoke to PO Galbo, who showed him the marihuana that was found, the quantity of which was substantial and was more than what is used for personal use. PO Galbo told him from where he recovered the marihuana, as this information would be necessary to establish who was being arrested and the associated charges, but he could not recall what PO Galbo said. He thought that either the car smelled of marihuana or there was a quantity in plain view. He smelled marihuana coming from the car. To his knowledge, no one at the scene took responsibility for the marihuana. He could not recall if he was told that the marihuana was found on § 87(2)(b). He verified all the arrests at the scene. He initially said that everyone was charged with criminal possession of marihuana, as he thought it was found in the car where everyone had access to it and not on one person. He then said that he was uncertain that everyone was charged or with what they were charged. He instructed that the car be taken back to the stationhouse because all the occupants were arrested and it could not be left in the street. He knew of nothing being done with the car at the stationhouse or issuing any further instructions regarding the car. He did not know if an inventory search of the car was done, although this was possible. After it was determined that the officers would go to § 87(2)(b)'s residence and after they returned to the stationhouse with marihuana they found there (addressed below), PO Galbo obtained a mirandized statement from § 87(2)(b) in which § 87(2)(b) took responsibility for the marihuana in the car and the apartment. At this point, there was no probable cause to further

detain § 87(2)(b) and § 87(2)(b) and they were released. Lt. McMahon instructed when they were to be released and he could not recall when this was except that it would have been after § 87(2)(b) provided his mirandized statement.

The 50th Precinct command log entries for § 87(2)(b) and § 87(2)(b) contain the following information (BR 20): They arrived at the stationhouse at 9:42 p.m. and their arrests were voided at 1:23 a.m. PO Galbo was the arresting officer and Lt. McMahon supervised the arrests. The charge for both was listed as criminal possession of marihuana.

For a defendant to be charged with marihuana, there must be evidence that the defendant exercised dominion or control over it by a sufficient level of control over the area in which the contraband is found. Evidence of a defendant's mere presence in the vehicle where the marihuana is found is insufficient of constructive possession, People v. Burns, 792 N.Y.S.2d 700 (2005) (BR 21).

§ 87(2)(g)

it is therefore recommended that **Allegations E and F** be closed as **Substantiated**.

Allegation G: Abuse of Authority: Lt. Paul McMahon entered and searched § 87(2)(b)

Allegation H: Abuse of Authority: At § 87(2)(b) **Lt. Paul McMahon threatened to arrest** § 87(2)(b) **and** § 87(2)(b)

In § 87(2)(b)'s phone statement (BR 14), he said that Lt. McMahon never asked him anything about what he had at his residence and he never told officers to go there for any reason.

§ 87(2)(b). No officer told him that they were going to the residence.

§ 87(2)(b)'s grandmother, § 87(2)(b) (BR 22), said that at the time of the incident, there was a loud knock on her apartment door. When she went to the door and asked who was there, the officers announced their presence. An officer said, "Ma'am, open the door. We want to ask you something." When § 87(2)(b) opened the door, five uniformed officers identified via investigation as PO Meribeth Alix and Sgt. Mathew Byrnes of the 50th Precinct, along with Lt. McMahon, PO Galbo and PO Dang, entered immediately without asking

permission and without an invitation. The officers did not show a warrant and § 87(2)(b) did not ask to see one. § 87(2)(b) thought that Lt. McMahon was the boss, because he was the only officer who spoke to her aside from PO Alix, who spoke to her in Spanish. § 87(2)(b) was told that § 87(2)(b) was arrested in a car and he sent the officers to the apartment to look for something in his room. The officers did not say why § 87(2)(b) was arrested. § 87(2)(b) became so confused that she could not think clearly and in retrospect, it did not make sense for § 87(2)(b) to send officers to his room if he had been arrested. § 87(2)(b) who had come to the door with § 87(2)(b) said she was going to call her mother § 87(2)(b). Lt. McMahon said, “No, you’re not calling nobody,” and instructed her to sit at the kitchen table, which she did. At the news of § 87(2)(b)’s arrest, § 87(2)(b) became very nervous and began to cry. Lt. McMahon told PO Alix to take care of § 87(2)(b) and PO Alix did not leave her side for the whole incident.

§ 87(2)(b) stated that Lt. McMahon asked her which room belonged to § 87(2)(b) and she showed them. Lt. McMahon and PO Galbo entered the bedroom. Initially, the door to the bedroom remained ajar and § 87(2)(b) saw the officers open all the drawers to the bureau. She did not know what the officers were searching for and she could not see all of the room at this time. § 87(2)(b) asked the officers to please not break the bureau because she paid a lot of money for it. The officers then closed the bedroom door. After about five minutes, the officers exited the bedroom with two shoeboxes. The shoeboxes were put on the living room couch. PO Galbo asked, “What about the couch?” and began lifting the cushions of the couch. § 87(2)(b) said, “There’s nothing in there. You want me to help you? I’ll help you.” One of the shoeboxes opened, and § 87(2)(b) saw that inside, there were four or five small plastic bags of marihuana inside a bottle. This was how § 87(2)(b) knew that § 87(2)(b) had marihuana inside his bedroom.

§ 87(2)(b) stated that Lt. McMahon gave her a paper saying that she authorized the search of the room and told her that she had to sign it. § 87(2)(b) did not want to sign the paper and asked, “Why do I have to sign that?” Lt. McMahon said to PO Alix, “Tell her that she has to sign it because if she does not, then I’m going to take them under arrest – her and the granddaughter,” in reference to § 87(2)(b) who did not respond to this. § 87(2)(b) said nothing and Lt. McMahon repeated, “You have to sign it.” § 87(2)(b) initially said that PO Alix told her what the paper said, and she could not recall what, but later said that PO Alix never told her what it said. PO Alix told § 87(2)(b) to sign and date the paper. § 87(2)(b) did not read the paper, but signed it.

§ 87(2)(b) said that all the officers except PO Alix and PO Dang proceeded to search the rest of the apartment. They looked under a table, in laundry bags and in a cube. Officers went into the kitchen and § 87(2)(b) heard the cabinets opening and closing. Lt. McMahon and PO Galbo went into her bedroom for two to three minutes and she could not see where they looked. She did not protest this, as she knew nothing would be found. After Lt. McMahon exited her bedroom, he asked her if she had any jewelry or money. § 87(2)(b) said that she did not work and was retired, and the little money she received she spent on food and regular items.

§ 87(2)(b) said that as the officers were leaving, PO Galbo noticed a closet next to the front door. He opened the closet and found a purse belonging to § 87(2)(b) who does not live there but sometimes stays there. He removed the purse and placed it on the kitchen

table. PO Galbo was going to look inside, but PO Alix said, “No, don’t worry. Leave that.” The officers then left with only the two shoeboxes they found in § 87(2)(b)’s room.

§ 87(2)(b) (BR 23) corroborated § 87(2)(b)’s testimony with the following exceptions and additional information: At the time of the incident, § 87(2)(b) was in § 87(2)(b)’s bedroom speaking on the phone. She heard people speaking to her grandmother, § 87(2)(b) through the closed door. She walked out of the room and saw five uniformed officers, identified via investigation as Lt. McMahon, PO Alix, Sgt. Byrnes, PO Galbo and PO Dang. § 87(2)(b) was told that if she did not allow the officers to search, she, § 87(2)(b) and § 87(2)(b) would be arrested. PO Alix told § 87(2)(b) that § 87(2)(b) and § 87(2)(b) would be held until the officers were allowed to search. The officers told § 87(2)(b) to put the dog in the bathroom, and she did so. When she returned, § 87(2)(b) was crying because she had become nervous, is afraid of officers and did not know what was happening. § 87(2)(b) screamed at the officers for making § 87(2)(b) cry. She tried to call her mother, § 87(2)(b) and Lt. McMahon would not allow her to do so. Lt. McMahon, PO Galbo and Sgt. Byrnes entered § 87(2)(b)’s room. After the officers exited § 87(2)(b)’s room with two shoeboxes full of marihuana, all the officers except PO Alix searched the rest of the apartment. When Lt. McMahon asked § 87(2)(b) about any money or jewelry she had, he also asked her and § 87(2)(b) if § 87(2)(b) had a gun, and they answered that he did not. Lt. McMahon then spoke to § 87(2)(b) about a paper she had to sign. He said, “If you do not sign this, we can take you and your granddaughter to jail for not cooperating.” Lt. McMahon said in reference to § 87(2)(b) “She’s fifteen, but she can go into juvenile.” § 87(2)(b) said, “You can’t take me nowhere because I did nothing.” Lt. McMahon said, “You’re in a house where all the marihuana is.” § 87(2)(b) and Lt. McMahon argued about whether she and § 87(2)(b) could be arrested for the marihuana found in the apartment. Lt. McMahon ultimately convinced § 87(2)(b) to sign the paper, and § 87(2)(b) wrote § 87(2)(b)’s name and address on it for her. § 87(2)(b) felt that § 87(2)(b) signed the paper because she felt as if she had no choice and the officers would arrest them if she did not.

In Lt. McMahon’s testimony (BR 17), he said that PO Galbo informed him that § 87(2)(b) did not have identification and lived at § 87(2)(b). Lt. McMahon recognized the address as one on which he has an unofficial case file. The precinct has received numerous drug complaints from the building. Lt. McMahon suspected that drugs were being sold from a few apartments within the building, including Apartment § 87(2)(b). Before the incident date, Lt. McMahon did not have § 87(2)(b) identified and only knew his physical description (heavyset Hispanic male). Lt. McMahon was unaware of any investigation into the building being conducted by the Narcotics Division. § 87(2)(e)

§ 87(2)(b)

§ 87(2)(b)

Lt. McMahon said that he decided to go to the location to establish that § 87(2)(b) lived there, given that he had no identification or anything confirming his address. In the event a prisoner does not have identification, a NYSID check is conducted. While a NYSID check could have been conducted, § 87(2)(b) mentioned that he goes between the Bronx address and another in Yonkers, and Lt. McMahon wanted to solidify where § 87(2)(b) lived for the arrest paperwork and for his investigation on the building. Lt. McMahon did not go to the apartment

with the intent to search it. He carried a consent-to-search form to the location, which he always has with him when on patrol along with other departmental forms. He asked PO Alix, a Spanish speaker, to come with the officers because of the information that an elderly female who may only speak Spanish resided there.

Lt. McMahon said that at the location, the officers knocked on the door of Apartment § 87(2)(b) and § 87(2)(b) opened the door. Lt. McMahon spoke to § 87(2)(b) who spoke English but preferred Spanish. He asked her if she knew § 87(2)(b) and she answered that he was her grandson. Lt. McMahon said, “Well, he got into a little bit of trouble with us tonight. I’d like to speak to you about that.” § 87(2)(b) said, “Yes, come in.” The officers had made no request to come in. Lt. McMahon said that all the officers did not have to come inside and § 87(2)(b) said, “No, it’s okay.” Initially, Lt. McMahon could not offer any answer as to why he entered the apartment, given that he went there to verify that § 87(2)(b) lived there and this could be confirmed outside the apartment. After the interviewing investigators attempted several times to get an answer from Lt. McMahon, his legal representative requested a recess. Upon resuming the record, Lt. McMahon stated that he entered the apartment because he wanted to inform § 87(2)(b) about the details of § 87(2)(b) being in custody.

Lt. McMahon said that a strong odor of marihuana emanated from the apartment, which was immediately apparent. Lt. McMahon explained to § 87(2)(b) that he received complaints about drug deals from the apartment and asked her if he knew about anything at the location involving § 87(2)(b) ### § 87(2)(b) said, “No.” Lt. McMahon established that § 87(2)(b) lived there, told § 87(2)(b) why § 87(2)(b) had been arrested and asked about § 87(2)(b). While speaking to § 87(2)(b) Lt. McMahon noticed a sack of marihuana on top of a brown dresser or table immediately inside and to the left of the front door. Lt. McMahon pointed the marihuana out to § 87(2)(b) and she seemed previously unaware of it. Lt. McMahon did not think the marihuana belonged to § 87(2)(b).

Lt. McMahon said that he did not think obtaining a search warrant was necessary, as the only reason he would do this is if he suspected that the apartment contained other contraband, such as weapons, which a consent-to-search form would not produce. Consent-to-search forms are for “low-key” searches, but do authorize officers to search the entire residence. Since he had no such suspicion, he did not obtain a search warrant. Furthermore, search warrants take a tremendous amount of effort, time, manpower and work, and Lt. McMahon did not think all this was justified for a small-time marihuana operation. § 87(2)(b) also informed him later that her apartment was part of Section 8, which Lt. McMahon was concerned about her losing.

Lt. McMahon said that he asked § 87(2)(b) if anyone else was inside the apartment. § 87(2)(b) pointed to a bedroom door and said that her granddaughter, identified as § 87(2)(b) was inside. Lt. McMahon asked to speak to § 87(2)(b) § 87(2)(b) approached the door, which was ajar, and opened it fully. § 87(2)(b) stood up from a mattress on the floor, and started to exit the bedroom. As soon as the bedroom door was opened, Lt. McMahon observed that immediately inside and to the left was a dresser on top of which was a glass jar containing more marihuana. A stronger smell of marihuana emanated from the bedroom. From the marihuana in plain view, Lt. McMahon suspected that there was more inside and he wanted to search the bedroom. Lt. McMahon spoke to § 87(2)(b) who was compliant. He could not recall if she ever tried to make a phone call. Lt. McMahon spoke further to § 87(2)(b) about § 87(2)(b)’s activities and upon noticing the additional marihuana, § 87(2)(b)

§ 87(2)(b) became a little nervous and may have cried. Lt. McMahon's intention was to help § 87(2)(b) keep her Section 8 status and prevent § 87(2)(b) from continuing to sell drugs from there. Lt. McMahon asked § 87(2)(b) if he ever saw § 87(2)(b) with a gun or if there was any other drug he was involved with, and § 87(2)(b) said she knew of no gun or other drugs.

Lt. McMahon said that he asked § 87(2)(b) to sign the consent-to-search form, given the marihuana he saw in the apartment. The officers ensured that § 87(2)(b) understood what she was signing. § 87(2)(b) offered no resistance to signing the form and never stated that she did not want to sign it. Lt. McMahon did not think she asked any questions about the form. She read, filled in and signed the form with a calm demeanor. Lt. McMahon did not threaten either § 87(2)(b) or § 87(2)(b) with arrest in order to recover the few ounces of marihuana. Lt. McMahon initially said that while § 87(2)(b) and § 87(2)(b) could have been arrested for the marihuana, there was no discussion about this. He then said that he told § 87(2)(b) that she could be held responsible for the marihuana, but assured her that it was clear to him that the marihuana did not belong to her and this was why she was not going to be arrested.

Lt. McMahon said that after § 87(2)(b) signed the form, he and PO Galbo searched the bedroom. Twenty minutes to a half hour later, they recovered a little more than a half pound of marihuana in different containers and other paraphernalia. The officers then did a cursory search of the living room, kitchen and § 87(2)(b)'s room. Nothing further was found in these other locations. Lt. McMahon asked § 87(2)(b) for any money or jewelry she had so he could ensure that it stayed secure and there would never be a suspicion of the officers taking valuables. The officers then left the residence with the marihuana they recovered. At the stationhouse, PO Galbo obtained a Mirandized statement from § 87(2)(b) in which he took responsibility for the marihuana found in the car and in the apartment.

PO Galbo's testimony (BR 16) contained the following inconsistencies and additional information from that of Lt. McMahon: PO Galbo was previously unaware of the complaints coming from 6141 Broadway until he spoke to Lt. McMahon. He could not recall if Apartment 2H was specifically named in the complaints. Lt. McMahon decided to go to the location to determine if there was any more marihuana there, given the complaints received from the building. PO Galbo could not recall if any conversation ensued outside the apartment door before § 87(2)(b) said, "Come in." On the kitchen table, just past the front door, PO Galbo observed a Ziploc bag containing a small amount of marihuana. When this was pointed out to § 87(2)(b) she became upset and began to cry. She said that she was concerned that she would be arrested or get in trouble. No officer said anything to her about being in trouble or being arrested. The officers asked § 87(2)(b) if there was more marihuana in the apartment and § 87(2)(b) said, "I don't know, but § 87(2)(b)'s room is right there. There might be." At this time, § 87(2)(b) told the officers that § 87(2)(b) was inside the room. When § 87(2)(b) opened the bedroom door, PO Galbo observed a large jar of marihuana on the floor and a drawer with more marihuana on top of it.

PO Galbo said that he asked § 87(2)(b) if she would sign a consent-to-search form to allow the officers to search the apartment. § 87(2)(b) was frightened, and she asked if she was in any trouble. The officers assured her that she was not and told her to remain calm. At least one officer (PO Galbo could not recall who or how many) went back to the

stationhouse to retrieve the form. No officer searched before the form was retrieved. PO Alix explained the consent-to-search form to § 87(2)(b). § 87(2)(b) said that as long as the marihuana was only found in § 87(2)(b)'s room, she would be in no trouble. § 87(2)(b) did not ask why she had to sign the form and did not hesitate at all that PO Galbo could recall. She was not under any duress when she signed the form and no pressure was placed on her to do so. She was not told by any officer that if she did not sign the form, both she and § 87(2)(b) would be arrested.

PO Galbo said that after the officers obtained the marihuana from § 87(2)(b)'s bedroom, a quick search of the rest of the apartment was conducted and PO Galbo could not recall where. He could not recall Lt. McMahon asking § 87(2)(b) about any money or jewelry she had. The officers left after the search was completed.

PO Galbo provided the following testimony in the criminal court complaint for Arrest § 87(2)(b) of § 87(2)(b) (BR 2): § 87(2)(a) 160.50

PO Alix's testimony (BR 24) contained the following inconsistencies and additional information from that of Lt. McMahon: On a date before the incident (PO Alix could not recall when), Lt. McMahon showed her a file on § 87(2)(b) which included paperwork regarding arrests made within, a couple of complaint reports and a couple of OLBS sheets. She could not recall any paperwork indicating any specific apartment. She knew the building to be a drug-prone location and did not know of any specific individual within the building being investigated.

PO Alix said that on the date of the incident, Lt. McMahon asked PO Alix, a Spanish speaker, to accompany the officers to the incident location because there would be an elderly female present who may only speak Spanish. He told PO Alix they were going to the location in regard to the arrest of § 87(2)(b) and he provided no further information. He did not inform her of any plan he had before arriving to the location. PO Alix was in the possession of the consent-to-search form because PO Galbo asked her to hold it, but he did not inform her of any plan to search the apartment. PO Alix frequently works with Lt. McMahon and PO Galbo, and neither commonly carries consent-to-search forms with them.

PO Alix said that when § 87(2)(b) opened the door, she was shaken to see the officers. Lt. McMahon explained to her that § 87(2)(b) had been arrested. He asked if the officers could enter because he did not want the neighbors hearing her business. § 87(2)(b) said in English, "Yeah, sure, fine, come in." She did not offer entry before Lt. McMahon asked. PO Alix could not recall if Lt. McMahon asked if § 87(2)(b) lived there. The apartment smelled faintly of marihuana. Upon entering, PO Alix saw clear, little Ziploc baggie of marihuana on the table. Lt. McMahon picked it up and showed it to § 87(2)(b) who did not seem shocked and PO Alix could not recall what she said about it. Lt. McMahon told § 87(2)(b) that § 87(2)(b) was arrested for marihuana, and § 87(2)(b) began to cry. She kept saying in Spanish, "Stupid, stupid, stupid. The stupid drugs, the stupid marihuana." After Lt. McMahon asked if anyone else was in the apartment and § 87(2)(b) told them about § 87(2)(b) he and PO Galbo pushed open the bedroom door, which was ajar. PO Alix was about eight feet from the threshold of the bedroom door, and saw no marihuana in plain view. The smell of marihuana intensified when the bedroom door opened.

PO Alix said that after § 87(2)(b) stepped out of the bedroom, Lt. McMahon asked § 87(2)(b)

§ 87(2)(b) if there was any more marihuana in the apartment. PO Alix could not recall what she said. Lt. McMahon and PO Galbo asked if they could search the apartment for additional marihuana. Lt. McMahon mentioned the marihuana found on the table and the smell coming from the bedroom. PO Alix translated this for § 87(2)(b) although she seemed to understand English, to ensure that it was being clearly communicated. § 87(2)(b) said, “Yeah, fine.” PO Alix took out the consent-to-search form, and read it out to § 87(2)(b) and translated it. § 87(2)(b) nodded and said, “Yeah, yeah. No problem.” She signed the form without asking any questions or expressing any hesitation. She had stopped crying at this time. § 87(2)(b) was never told that she could be arrested for the marihuana inside the apartment and was not told that if she did not sign the form, either or both she and § 87(2)(b) would be arrested. The officers did not search anywhere before signing the form. After the bedroom was searched and the marihuana was retrieved, the officers left. No other place aside from the bedroom was searched. Lt. McMahon did not ask § 87(2)(b) about money or jewelry.

The consent-to-search form lists § 87(2)(b)'s name and address, and is signed and dated (BR 25).

A warrantless entry into a residence to effect an arrest is only justified when there are exigent circumstances establishing an urgent need for that entry, People v. McBride, 902 N.Y.S.2d 830 (2010) (BR 26). When an arrest is made within a residence, there is no justification for searching any other room than that in which the arrest is effected without a search warrant, Chimel v. California, 395 U.S. 752 (1969) (BR 27). When officers enter a home after consent is freely, voluntarily and intelligently given, consent for a warrantless search must also be freely, voluntarily and intelligently given, and may not be obtained by implied coercion that assurances made or implied would not be fulfilled if it was not given, Plaintiff v. Fenstermaker, 402 F. Supp. 2d 1349 (2005) (BR 28).

§ 87(2)(g)

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It is therefore recommended that **Allegations G** and **H** be closed as ***Substantiated***.

Squad: 8

Investigator: _____ Leanne Fornelli _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date